Pratibha Thakur vs Govt Of Nct Delhi Through Sho Ps Vijay ... on 30 August, 2024

Author: Anup Jairam Bhambhani

Bench: Anup Jairam Bhambhani

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
\+ BAIL APPLN. 3115/2024
PRATIBHA THAKUR
Through: Mr. Gaurav Arora

versus
GOVT OF NCT DELHI THROUGH SHO PS VIJAY V

Through: Ms. Shubhi Gupta,
with SI Arun, DI
CORAM:
HON'BLE MR. JUSTICE ANUP JAIRAM BHAMBHAN
ORDER

% 30.08.2024 CRL.M.A. 26093/2024 (exemption) Exemption granted, subject to just exceptions. Let requisite compliances be made within 01 week. The application stands disposed of.

By way of the present petition filed under section 482 read with section 528 of the Bharatiya Nagarik Suraksha Sanhita 2023 ('BNSS'), the petitioner seeks anticipatory bail in case FIR No. 0349/2021 dated 12.07.2021 registered under sections 420/463/464/465/468 of the Indian Penal Code, 1860 ('IPC') at P.S.:

Vijay Vihar, New Delhi ('subject FIR').

2. Mr. Gaurav Arora, learned counsel appearing for the petitioner submits, that the subject FIR has come to be filed as an act of vengeance against the petitioner; however the petitioner herself is a victim of fraud in relation to which she had made a complaint dated This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 20/09/2024 at 21:12:17 11.10.2019 addressed to the General Manager (Vigilance), Eastern Railway, as was acknowledged by the Vigilance Officer vide a response dated 04.02.2020.

3. Mr. Arora informs the court that the petitioner has been running a primary school in Delhi; and that she has been implicated in the said FIR falsely and without any basis.

4. Counsel submits, that the petitioner has joined investigation as and when she was called by the previous Investigating Officer ('I.O.'); and the previous I.O. had felt no need to arrest her for all these years. Subsequently however, upon a change in the I.O., the petitioner submits, that she has been threatened with arrest.

5. Issue notice.

6. Mr. Utkarsh, learned APP appears on behalf of the State on advance copy; accepts notice; and seeks time to file status report.

7. Let the status report be filed within 06 weeks; response thereto, if any, be filed within 04 weeks; with copy to the opposing counsel.

8. Learned APP submits, that the petitioner has failed to join the investigation on the last few dates on which she was called; and is not explaining the particulars of certain financial entries appearing in her accounts relating to receipt of money and of payment of certain sums of the money to the complainant.

9. On a prima-facie view of the matter, and subject to the petitioner joining investigation as and when called by the I.O. by written notice duly served upon her, no coercive steps shall be taken against the petitioner, till the next date of hearing.

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10. In view of the mandate of the Supreme Court in Jagjeet Singh & Ors.

vs. Ashish Mishra @ Monu & Anr.1, the complainant/victim is entitled to be heard in the present proceedings. Accordingly, let intimation be sent by the I.O. to the complainant/victim informing them that they are entitled to be heard in the present proceedings, for which they may remain present (either in-person or via video- conferencing) or be represented on the next date.

11. Re-notify on 25th November 2024.

ANUP JAIRAM BHAMBHANI, J AUGUST 30, 2024 V.Rawat (2022) 9 SCC 321 at paras 22, 23 This is a digitally signed order.

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